

23STCV29801 23STCV29801

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-06-25

Motion: DEFENDANT LOS ANGELES HOMELESS SERVICES AUTHORITY'S MOTION FOR LEAVE TO FILE
CROSS-COMPLAINT

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Case Number: 23STCV29801 Hearing Date: June 25, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

KERRY

IACONELLI, an individual,

Plaintiff,

vs.

LA GRAND HOTEL, unknown entity; NEWWORLD NEW AGE I LLC, an
unknown entity; CITY OF LOS ANGELES, a public entity; COUNTY OF LOS ANGELES,
a public entity; CALIFORNIA DEPARTMENT OF HOUSING AND COMMUNITY DEVELOPMENT,
a public entity; STATE OF CALIFORNIA, a public entity; LOS ANGELES HOMELESS
SERVICES AUTHORITY, a public entity; HOUSING AUTHORITY OF THE CITY OF LOS ANGELES,
a public entity; DESIRAE DOE, an individual; and DOES 1-100, inclusive,

Defendants.

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CASE NO.: 23STCV29801

[TENTATIVE] ORDER RE:

DEFENDANT LOS ANGELES HOMELESS SERVICES
AUTHORITY'S MOTION FOR LEAVE TO FILE
CROSS-COMPLAINT

Dept. 733

8:30 a.m.

June 25, 2026

I.

INTRODUCTION

On December 6, 2023, Plaintiff Kerry Iaconelli ("Plaintiff") filed a complaint against LA Grand Hotel ("LA Grand"), New World New Age I LLC ("New World"), City of Los Angeles ("City"), County of Los Angeles ("County"), California Department of Housing and Community Development ("DHCD"), State of California ("State"), Los Angeles Homeless Services Authority ("LAHSA"), Housing Authority of the City of Los Angeles ("LA Housing Authority), and Desirae Doe ("Desirae"), alleging causes of action for (1) Assault, (2)

Battery, (3) Intentional Infliction of Emotional Distress, (4) Negligence, and (5) Negligent Hiring, Supervision and Retention.

The complaint alleges the following. On or about December 21, 2022 Plaintiff was a guest and/or resident at LA Grand Hotel through the Project Room Key program, a program created during the Covid-19 Pandemic which assisted homeless persons with acquiring housing in hotels and motels to curb the spread of Covid-19. As Plaintiff was in a restroom within the subject premises, Defendants' employees and/or security guards entered the restroom and forced her to remove her clothing to be searched for a rash and/or similar condition. As Plaintiff was being searched, Defendant Doe, suddenly and without warning, physically attacked and assaulted Plaintiff with such force that Plaintiff suffered injuries and damages. (Compl., ¶ 18.) Project Roomkey was created and operated through collaboration between the City of Los Angeles, the State of California, the County of Los Angeles, and moving party, Los Angeles Homeless Services Authority.

On February 6, 2026, Plaintiff filed an amendment to add The Salvation Army, Inc. ("Salvation Army") as DOE 2. On February 13, 2026, Plaintiff filed for dismissal of Salvation Army from the action, which was granted on February 18, 2026.

On May 22, 2026, LAHSA filed the instant motion for leave to file a cross-complaint.

No opposition was filed.

II.

LEGAL STANDARD

The court may grant leave to file a cross-complaint if the failure to plead a cause of action was the result of oversight, inadvertence, mistake, neglect, or other cause. (Code Civ. Proc., § 426.50.) Where the proposed cross-complaint arises out of the same transaction as plaintiff's claim, the court must grant leave to file the cross-complaint as long as defendant is acting in good faith. (Ibid.; see *Silver Organizations Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 99 [the Court may not "exercise discretion" in the denial of a motion to file a compulsory cross-complaint].) Judicial policy favors resolution of all disputed matters between the parties in the same lawsuit and

discretion will usually be exercised liberally to permit amendment of the pleadings. (See *Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 929.)

“‘Bad faith,’ is defined as ‘[t]he opposite of “good faith,” generally implying or involving actual or constructive fraud, or a design to mislead or deceive another, or a neglect or refusal to fulfill some duty or some contractual obligation, not prompted by an honest mistake ..., but by some interested or sinister motive[,] ... not simply bad judgment or negligence, but rather ... the conscious doing of a wrong because of dishonest purpose or moral obliquity; ... it contemplates a state of mind affirmatively operating with furtive design or ill will. [Citation.]’ [Citations.]” (*Silver Organizations*, supra, 217 Cal.App.3d at p. 100.)

A party may obtain leave of court to file a cross-complaint at any time during the course of a lawsuit, and leave may be granted in the interest of justice. (Code Civ. Proc., §§ 426.50, 428.50; see also *Sidney v. Superior Court* (1988) 198 Cal.App.3d 710, 718.) “To the extent practicable, all supporting memorandums and declarations must be attached to the notice of motion.” (Cal. Rules of Court Rule 3.1113(j).)

III.

DISCUSSION

LAHSA moves the Court for leave to file a cross-complaint against Salvation Army and Desirae for 1) equitable indemnity; 2) breach of contract; 3) express indemnity; 4) declaratory relief; 5) apportionment; and 5) contribution.

Here, the proposed cross-complaint is premised on compulsory counterclaims, given that the claims in the proposed cross-complaint are based on the same Incident at the Subject Property, specifically regarding LAHSA's pursuant to a proposed indemnity clause contained in the Project Roomkey contract between The Salvation Army and LAHSA. (*Barkinskaya Decl.*, Ex. A; see Code Civ. Proc., § 428.10(b); *Sattinger v. Newbauer* (1954) 123 Cal.App.2d 365, 369 [“The fundamental reason for allowing cross-complaints is to have a complete determination of a controversy among the parties in the one action, thus avoiding circuity of action”].)

The Court also finds that LAHSA acted in good faith. Counsel provides LAHSA seeks only to protect itself

and to secure its right to attribute liability to all appropriate potentially responsible parties, pursuant to a claimed contract with Salvation Army. (Barkinskaya Decl., ¶ 5.) LAHSA has also requested that counsel for The Salvation Army and Plaintiff stipulate to allow LAHSA to file the proposed cross-complaint, to no avail. (Id. ¶ 7.)

Lastly, the Court notes that the motion is unopposed.

IV.

CONCLUSION

Based on the foregoing, LAHSA's motion for leave to file a cross-complaint is GRANTED.

LAHSA is ordered to file the proposed Cross-Complaint within five (5) days of this order.

Dated this 25th day of June 2026

Hon. Gary D.
Roberts

Judge of the
Superior Court